

STONY SILENCE
Jharkhand CM Hemant Soren with Governor Ramesh Bais, Oct. 2

SOMNATH SEN

The Jharkhand mess started in February this year when the Bharatiya Janata Party (BJP), in power at the Centre and the main Opposition in the state, approached Bais, alleging a mining lease Soren owned violated the Representation of the People Act, 1951. Elected representatives are prohibited from entering into any contract with the government for supply of goods or execution of any works undertaken by it. Soren, who had acquired the mining lease in 2021, surrendered it in February following the political uproar. However, Bais had forwarded the BJP's plea for Soren's disqualification to the EC.

Reports about his inevitable disqualification, after the EC's purported letter, sent Soren into overdrive, as he moved 32 MLAs of the ruling JMM-Congress-Rashtriya Janata Dal alliance to the Congress-ruled Chhattisgarh on August 30 to prevent any 'poaching' attempts by the BJP. He later summoned the legislators back and unilaterally moved a confidence motion in the assembly on September 5. With 48 'ayes' against zero 'noes' (given that the BJP had walked out), the CM won the motion comfortably. Since then, he has issued a slew of populist decisions, laying the groundwork for a comeback in case of a mid-term ouster.

In the meantime, Team Soren has made multiple attempts to enquire about the EC's recommendations. The CM met the governor in September, urging him to end the suspense over his disqualification. His legal team also approached the EC, seeking a copy of the letter sent to Bais, while a party leader took recourse to the Right to Information (RTI) to know about the commission's opinion. But all attempts have come to naught.

"Soren indeed has reasons to be peeved. He is the only chief minister in the country who goes to bed without knowing whether he would wake up holding the same post or with an 'ex' prefixed to it," says a senior bureaucrat in Jharkhand. Carved out of Bihar in November 2000, Jharkhand has had a history of such uncertainties. The fledgling state saw nine governments and three spells of President's rule till Raghubar Das of the BJP took over its reins in December 2014 and went on to become the first CM to complete a full term in office. Soren, who wrested power from the BJP in December 2019, also leads an alliance with a comfortable majority—it has 49 legislators, including 30 of the JMM led by him, in a House of 82.

AS THE DECISION ON HIS DISQUALIFICATION GETS DELAYED, THE CM LIKENS HIS POSITION TO A SUSPECT BEGGING TO BE PUNISHED IF GUILTY

But the CM is widely believed to be living on borrowed time amid apprehensions about his disqualification. He maintains his continuation on the constitutional post of CM makes it mandatory for him to take multiple policy decisions. However, the legitimacy of these decisions might come under judicial scrutiny if the EC's recommendations, if and when communicated by the governor, deprive him of the post. The situation will only get messier, it seems, if this political drama takes any more time to reach its conclusion. ■